



CHAPTER clxi.

An Act to confirm a Provisional Order under the Private A.D. 1913.
Legislation Procedure (Scotland) Act 1899 relating to
Airdrie Corporation Gas. [15th August 1913.]

WHEREAS His Majesty's Secretary for Scotland has made
the Provisional Order set forth in the schedule hereunto
annexed under the provisions of the Private Legislation Procedure
(Scotland) Act 1899 and it is requisite that the said Order
should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent
Majesty by and with the advice and consent of the Lords
Spiritual and Temporal and Commons in this present Parliament
assembled and by the authority of the same as follows:

1. The Provisional Order contained in the schedule hereunto
annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Airdrie Corporation Gas Short title.
Order Confirmation Act 1913.

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S C H E D U L E.

AIRDRIE CORPORATION GAS.

*Provisional Order to extend the limits for the supply of Gas
by and to confer further powers on the Provost
Magistrates and Councillors of the Burgh of Airdrie in
connection with their Gas Undertaking.*

WHEREAS by the Airdrie Corporation Gas Order 1904 (hereinafter called "the Order of 1904") the undertaking of the Airdrie Gas Light Company was transferred to and vested in the provost magistrates and councillors of the burgh of Airdrie (in this Order called "the Corporation") and powers were conferred on the Corporation inter alia to manufacture and store gas and to sell and supply gas within the limits of the Order of 1904 as therein defined and to borrow on mortgage any sums not exceeding in all the sum of one hundred thousand pounds and to make and grant mortgages of the undertaking by that Order vested in them and of the rents rates and revenues leviable and receivable by them under the provisions of that Order in security of the payment of the money so borrowed and interest thereon:

And whereas the Corporation at present supply gas within the limits of the Order of 1904 and the introduction of a supply of gas to various districts and villages in the county of Lanark beyond those limits would be of great benefit and advantage to the inhabitants thereof and it is expedient that such limits should be extended and that further powers with reference to their gas undertaking should be conferred upon the Corporation as by this Order provided:

And whereas it is expedient that the Corporation should be authorised to borrow further moneys for the purposes of their gas undertaking:

And whereas it is expedient that the Corporation should be authorised to charge a differential rate for the supply of gas within the extended limits of supply:

And whereas it is expedient that the Corporation should be authorised to reduce the illuminating power of the gas supplied by them and that further provision should be made for testing such illuminating power:

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And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899: A.D. 1913.

Now therefore in pursuance of the powers contained in the last mentioned Act the Secretary for Scotland orders as follows:—

1. This Order may be cited for all purposes as the *Airdrie Corporation Gas Order 1913* and the Order of 1904 and this Order may be cited together as the *Airdrie Corporation Gas Orders 1904 and 1913.* Short and collective titles.

2. This Order shall commence and have effect on and from the date of the passing of the Act confirming the same which date is hereinafter referred to as “the commencement of this Order.” Commencement of Order.

3. The following Acts are hereby incorporated with this Order namely:— Incorporation of Acts.

The Gasworks Clauses Act 1847 (except the provisions thereof with respect to the amount of profit to be received by the undertakers when the gasworks are carried on for their benefit and with respect to the yearly receipt and expenditure of the undertakers) Provided that section thirteen of that Act shall be read as if the words “or any premises” were inserted after the words “private building” and as if the words “Provided also that every “such contract entered into by the undertakers shall be “alike in terms and amount under like circumstances to “all consumers” were added at the end of that section;

The Gasworks Clauses Act 1871 (except sections 7 8 and 35 thereof); and

The Commissioners Clauses Act 1847 with respect to the mortgages to be executed by the Commissioners except sections 84 86 and 87.

4. In this Order the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction And— Interpretation.

“The burgh” means the burgh of Airdrie;

“The Corporation” means the provost magistrates and councillors of the burgh;

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“The Order of 1904” means the Airdrie Corporation Gas Order 1904;

“The gas undertaking” means the gas undertaking of the Corporation;

“The county authorities” means the county council of the county of Lanark and the district committee of the Middle ward of the said county for their respective rights jurisdictions and interests;

“The sheriff” means the sheriff of the county of Lanark or any of his substitutes.

Extension of
gas limits.

5. The limits within which the Corporation may supply gas are hereby extended so as to include such parts of the parishes of New Monkland Shotts and Bothwell in the county of Lanark as lie within the following boundaries (that is to say):—

Commencing at a point on the Carlisle Road near Raebog Cottage crossing that road and proceeding thence in a straight line in an easterly direction to a point at the junction of the boundaries of the parishes of New Monkland in the county of Lanark Slamannan in the county of Stirling and Torphichen in the county of Linlithgow thence in a south-westerly southerly and south-easterly direction along the boundary of the parish of Torphichen to a point in the parish of Shotts three hundred yards or thereabouts south of the road leading from Edinburgh to Glasgow by Airdrie thence in a westerly direction following a line three hundred yards or thereabouts distant from and parallel to the said road until it reaches a point on the road leading from Stepends to Annieshill thence in a straight line in a south-westerly direction to a point on the road from Edinburgh to Glasgow by Bellshill and Holytown at Craighill where the Biggar road crosses thence in a westerly direction following the southern boundary of the said road from Edinburgh to Glasgow by Bellshill and Holytown to a point at Legbrannock in the parish of Bothwell three hundred yards or thereabouts east of the Holytown Quoad sacra parish church thence in a straight line in a north-westerly direction to a point on the road leading from Airdrie to Holytown through Calderbank situated on the boundary of the parish of Old Monkland thence in a northerly direction along the boundary of the said parish of Old Monkland to the

boundary of the parish of New Monkland thence in a north-easterly direction along the boundary of the said parish of New Monkland to a point on the said boundary at Ford near Plains and thence in a straight line in a north-westerly direction to the said point on the Carlisle Road near Raebog Cottage: A.D. 1913.

All of which limits are in this Order referred to as "the extended limits of supply" and for the purposes of such supply and subject to the provisions of this Order the Corporation shall have and may exercise all the powers rights privileges and authorities and shall be subject to the same obligations as they now have and may exercise and are subject to under the provisions of the Order of 1904 and those provisions as far as they are respectively in force at the commencement of this Order shall subject to the provisions of this Order extend and apply to the extended limits of supply and the supply of gas thereto.

The area comprised within the extended limits of supply is more particularly delineated upon a map three copies whereof having been signed by the Secretary for Scotland one copy thereof shall within one month after the commencement of this Order be deposited in the office of the Secretary for Scotland Whitehall London one copy thereof shall be deposited in the Private Bill Office of the House of Commons and one copy thereof shall be deposited with the town clerk of the burgh at his office Provided that if there be any discrepancy between the said map and the description contained in this section the said map shall be deemed to be correct and shall prevail.

6. The Corporation may upon the application of the owner or occupier of any premises within the extended limits of supply abutting on or being erected in any street or road laid out or made but not dedicated to public use supply such premises with gas and may lay down and take up alter relay or renew in across or along such street or road such pipes and apparatus as may be requisite or proper for the furnishing such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Power to lay pipes in streets not dedicated to public use.

7. Notwithstanding anything in section 36 (Corporation to fix price of gas) of the Order of 1904 the Corporation may

Price of gas in extended limits of supply.

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A.D. 1913. — within the extended limits of supply charge for gas supplied by them for any purpose (excepting public purposes) any price not exceeding sixpence per one thousand cubic feet in addition to the price charged by them for gas supplied for the same purpose within the limits defined in section 7 (Limits of Order) of the Order of 1904 :

Provided that as regards the supply of gas to the villages of Glengowan Caldercruix and Chapelhall such additional price shall not exceed threepence per one thousand cubic feet Any question that may arise as to what property or subjects are from time to time to be held as included in the villages of Glengowan Caldercruix and Chapelhall or any of them shall failing agreement be determined by the sheriff on the application of the Corporation or the county authorities or any proprietor or occupier of property or subjects having an interest to have such question determined.

Illuminating
power of
gas.

8.—(1) The prescribed number of candles shall not be less than fourteen.

(2) The quality of the gas supplied by the Corporation shall with respect to its illuminating power be such as to produce at the testing place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming one hundred and twenty grains of sperm per hour and shall be in all respects in accordance with the provisions of the Gasworks Clauses Act 1871.

(3) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand No. 2 the photometer shall be the bar-photometer the standard light shall be that supplied by Harcourt's ten-candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light Provided that the Board of Trade may on the application of the Corporation or any five consumers approve the use of any other burner photometer or standard light which may appear to the Board to be equally or more suitable for the testing.

(4) The Corporation shall within three months after the commencement of this Order provide all the apparatus required by this Order for the testing of gas and shall at all times keep the same in proper order and repair.

(5) The method of reporting periodical tests shall be such as to carry forward the average of the previous tests in the following

manner namely the test made on any one occasion shall be added to the tests made on the two previous occasions and the average of the three shall be reported as being the illuminating power so ascertained. A.D. 1913.

(6) Section 30 (Quality of gas) and section 31 (Burner) of the Order of 1904 are hereby repealed.

9. Notwithstanding anything contained in section 8 of the Order of 1904 if at any time the local or lighting authority whether constituted before or after the commencement of this Order of any district beyond the burgh included in the limits of supply as extended by this Order are desirous to purchase so much of the gas undertaking as is situate within such district or any part thereof and of such desire shall give to the Corporation at least six months' notice in writing the Corporation shall notwithstanding the provisions of section 2 of the Burghs Gas Supply (Scotland) Act 1876 or of any other Act at the expiration of such notice sell that portion of the gas undertaking except the works mains and pipes or other apparatus which shall be necessary for supplying with gas any other district or districts at a price to be determined in default of agreement by arbitration in manner provided by the Lands Clauses Acts Provided that after the completion of such purchase all powers and obligations on the part of the Corporation to supply gas within such first-mentioned district or part thereof as aforesaid shall cease and determine. Local or lighting authority may purchase portion of gas undertaking.

10. In the exercise of the powers conferred by this Order and the Order of 1904 the following provisions for the protection of the county authorities shall (except so far as otherwise agreed upon in writing between the county authorities and the Corporation) have effect (that is to say):— For protection of county authorities.

(1)—(A) All main pipes and works to be laid in or along any highway or in upon or across any bridge repairable by the county authorities or the roadway over the same or approaches thereto shall be laid in such position in such highway bridge roadway or approaches or at the side thereof and at such depth as the county authorities may reasonably direct:

(B) In all cases where the Corporation propose to lay mains pipes and works in proximity to any mains

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sewers pipes or other works belonging to the county authorities these shall be laid in such positions and at such levels in relation to the mains sewers pipes and works of the county authorities as the county authorities may reasonably direct:

- (2) The provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes shall subject to the provisions of this section extend and apply to all highways and bridges and the roadways over the same and the approaches thereto and to all other property of the county authorities opened and broken up or interfered with by the Corporation in the exercise of the powers of this Order. Provided that the notice required by section 8 of that Act shall (except for laying connecting or repairing consumers' service pipes as to which three days' notice shall be given and except in cases of accidental leakage or burst as to which notice shall be given thereafter as soon as may be) be not less than in the case of a bridge or the approaches thereto one month and in all other cases fourteen days and with such notice there shall in every case (except as aforesaid) be sent a plan and section showing the proposed works:
- (3) Nothing in this Order or in the Order of 1904 shall authorise the Corporation to interfere with the structural part of any bridge repairable by the county authorities without the consent in writing of the county authorities which consent shall not be unreasonably withheld and may be given upon such conditions as the county authorities may reasonably determine:
- (4) No sewer or water pipe or other works or property of the county authorities shall be in any way altered or interfered with except in accordance with plans sections and specifications previously submitted to and approved of by the county authorities which approval shall not be unreasonably withheld and any such alteration or interference shall be made at the expense of the Corporation:
- (5) The county authorities shall not be liable for or in respect of any damage or injury to any mains pipes

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or other works of the Corporation laid down or constructed under the powers of this Order or the Order of 1904 in or on any highway or bridge or the roadway over a bridge or the approaches thereto caused by the use of road rollers and other road plant and heavy traffic or resulting from the exercise by the county authorities of the powers vested in them from time to time:

- (6) Nothing in this Order contained or in the Order of 1904 shall take away or abridge any power vested or to be vested in the county authorities to construct build lay repair maintain open or break up alter enlarge improve divert or relay or reconstruct any highway road street bridge or any sewer drain main pipe channel or conduit or other works of the county authorities and in the event of the county authorities in the exercise of any such power finding it necessary to interfere with any pipes works or fittings of the Corporation the Corporation shall at their own cost alter relay or if necessary remove such pipes works or fittings temporarily or permanently as may be reasonably required to meet the new or changed conditions:
- (7) All works shall be so executed by the Corporation as not to stop the traffic and so far as reasonably practicable as not in any way to impede or interfere with the traffic on any highway or over any bridge carrying any highway or the approaches thereto:
- (8) The Corporation in opening or breaking up the highways bridges or roadways under the jurisdiction of the county authorities shall not without the consent of the county authorities have more than one hundred lineal yards open or broken up at any one place at one time in any such highway bridge or roadway and the Corporation shall complete their operations and restore the said highway bridge or roadway and the surface thereof to the satisfaction of the county authorities with all reasonable despatch and maintain the same for a period of twelve months from the date of a certificate by the county authorities or their surveyor certifying that such highway bridge or roadway has been satis-

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factorily restored The restoration of highways or roadways under this section shall mean and include the bottoming of the tracks opened up with materials and in a manner reasonably satisfactory to the county authorities and the metalling rolling and completion of the tracks also with materials and in a manner reasonably approved of by the said authorities :

- (9) In the event of the county authorities deciding at any time to apply for powers to supply electric light within any portion of their district the Corporation shall not oppose any such application :
- (10) The Corporation shall if required by the county authorities supply such county authorities with gas for the purpose of the public lighting of any special lighting district formed or which may be formed by the county authorities which is within the limits of supply as proposed to be extended by this Order or any portion thereof or for the public lighting of any highway within such limits at a price not exceeding the price charged for the time being for street lighting within the burgh and if any portion of such special lighting district or highway be outside but adjoins such limits the Corporation shall if required by the county authorities so far as they competently may also supply such county authorities with gas at the price aforesaid for the purposes of the public lighting of such portion or such highway :
- (11) The Corporation shall pay to the county authorities the reasonable costs which they may incur in the repair and reinstatement of so much of any highway or of the roadway of any bridge carrying any highway or the approaches thereto in which the mains pipes and works of the Corporation are or may be laid as may be damaged by reason of the traffic being concentrated thereon during the laying alteration renewal or repair of the said pipes :
- (12) Any extra expense which may be incurred by the county authorities in carrying out any powers vested or which may be vested in them by any existing or future Act of Parliament or otherwise in con-

sequence of works of the Corporation already existing or of the construction of works by this Order authorised or under the powers of the Order of 1904 shall be repaid to the county authorities by the Corporation : A.D. 1913.

- (13) The Corporation shall pay to the county authorities the costs or expenses they may reasonably incur or be put to in superintending the works authorised by this Order or the Order of 1904 or with reference to any of the matters contained in this section :
- (14) All notices to be given or plans to be submitted under the provisions of this section shall be deemed to be sufficiently served on or submitted to the county authorities if the same be sent to the clerk to the district committee of the Middle ward of the county of Lanark at his office at Hamilton :
- (15) The Corporation shall not oppose any application by the county authorities for powers to supply gas within the limits of supply so far as within the county of Lanark or any part thereof provided the county authorities are willing to take over the Corporation's pipes or works so far as within any area within which or for which the county authorities might obtain powers to supply gas or alternatively provided the county authorities agree to take from the Corporation a supply of gas in bulk for the service of such area :
- (16) Without prejudice to the Corporation's obligations with respect to the supply of gas and notwithstanding that the district or part of the district known as Legbrannock and Owood in the parish of Bothwell is situated within the Corporation's limits of supply as extended by this Order the county authorities may if they think fit at any time prior to the Corporation supplying gas to the said district arrange with any other company body or person for the supply of gas to the said district and so long as any such arrangement is in existence the powers of the Corporation with respect to the supply of gas shall remain in abeyance :

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- (17) If any difference at any time arises between the county authorities and the Corporation touching this section or anything to be done or not to be done thereunder such difference shall be settled by an arbiter to be agreed upon between them or failing such agreement to be appointed on the application of either party by the sheriff.

Section 44 (For protection of county council of county of Lanark) of the Order of 1904 is hereby repealed.

For pro-
tection of
Caledonian
Railway
Company.

11. The following provisions for the protection of the Caledonian Railway Company (hereinafter in this section called "the company") shall unless otherwise agreed in writing between the company and the Corporation apply and have effect within the extended limits of supply (that is to say):—

- (1) Before commencing any works or operations for the purpose of laying down executing maintaining repairing or renewing the proposed or existing mains pipes or fittings or other works affecting any lines of railway or other works or land or property belonging to or occupied by the company or any bridge or approaches thereto or the roadway on or under such bridge or other work belonging to or maintainable or repairable by the company or within sixty feet of any such lines of railway the Corporation shall (except in cases of emergency as hereinafter provided) submit to the company plans sections working drawings and specifications thereof showing the manner in which such works or operations are to be carried out as well as the design material and mode of execution thereof for approval of the company which approval shall not be unreasonably withheld and shall be deemed to have been given unless the company signify their disapproval within fourteen days after submission of the said plans sections working drawings and specifications. All the said works and operations shall except as aforesaid be constructed carried on and completed in conformity only with the plans sections working drawings and specifications so approved at the sole risk and cost of the Corporation and at the sight and to the reasonable satis-

faction of the company and all such works shall be maintained repaired or renewed by the Corporation in all time coming at their sole cost at the sight and to the satisfaction of the company : A.D. 1913.

- (2) The Corporation shall not (except in cases of emergency as hereinafter provided) without the previous consent in writing of the company which consent shall not be unreasonably withheld enter upon or interfere with any railway or other works or land or other property belonging to or occupied by the company or any bridge or approaches thereto or other subject belonging to or maintainable or repairable by the company further or otherwise than may be necessary for constructing and maintaining any works or carrying out any operations of the Corporation to be executed carried out or laid in upon over or under any such railway bridge work or land or other property and they shall not alter or interfere with the works of any such railway :
- (3) The Corporation shall give fourteen days' previous notice in writing to the company of their intention to commence any of the works by this Order authorised which will affect the property or works of the company except in cases of emergency arising from defects in any of the mains pipes or other works of the Corporation and then so soon as is possible after the beginning of the work or after the necessity for the same shall have arisen and such works shall be completed with all reasonable despatch :
- (4) The Corporation shall pay to and reimburse the company in all reasonable costs charges and expenses which they may incur in connection with the approval of any plans sections working drawings and specifications which may be submitted to them for approval as aforesaid or in connection with the construction of the works authorised by this Order or the subsequent maintenance use alteration replacing or repair thereof including (without prejudice to the said generality) any expenses which the company may reasonably incur in connection with the employment of inspectors signalmen watchmen and others and for the superin-

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tendence and all reasonable extra precautions for the safety and working of their traffic or protection of their property during execution or in connection with the maintenance use alteration replacing or repair of the said works :

- (5) All the works and operations of the Corporation under this Order including the maintenance and any alteration replacing or repair thereof shall in so far as the same affect the railway or other works or lands or bridges or other property of the company be constructed executed and completed by the Corporation at their sole risk and cost and so as not to injure alter or interfere with or endanger the structure or stability of any of the said railway or other works or lands or bridges or other property of the company in or about which the said mains or pipes are to be laid or the roadway on or under any bridge belonging to or maintainable by the company or in or about the approaches thereto or the electric telephonic or signalling apparatus belonging to or maintainable by the company and the Corporation shall if necessary underpin or otherwise strengthen or support such bridges and should any danger injury interruption impediment or interference to or with the passage or conduct of traffic on any such railway be caused by or be in any way owing to the works or operations of the Corporation or the failure of or defect in the said mains pipes or fittings or any works of the Corporation or be reasonably apprehended in connection therewith the Corporation shall free of all expense to the company execute and do all such works as may be necessary to restore remove or prevent such injury danger interruption or impediment as the case may be or the company in their option and for any of these purposes may enter upon the works or property of the Corporation and execute and do all such works and things as may be necessary to restore remove or prevent such injury danger interruption or impediment and the Corporation shall on demand repay to the company all reasonable costs and expenses incurred by them

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in connection therewith Provided further that the Corporation shall pay all costs and expenses and shall make reasonable compensation to the company for all loss or damage including loss of traffic caused by such works and operations interruption impediment or interference to or with the railways or other works lands bridges or other property owned maintained or repairable or used or occupied by the company:

- (6) Nothing in this Order contained or which may be done in pursuance thereof shall prevent the company if they have power to do so from maintaining repairing renewing deviating widening enlarging altering or reconstructing their railways bridges or approaches or other works in connection therewith without incurring any liability to the Corporation or to any person using the works authorised by this Order for any loss injury damage or expenses which may arise from such maintenance repair deviation alteration or reconstruction Provided that in the event of the company so deviating widening altering or reconstructing their railways bridges or approaches or other works they shall conduct their operations in such manner as to cause as little damage and interference as practicable to and with the said works of the Corporation hereby authorised the Company except in cases of emergency giving fourteen days' previous notice in writing to the Corporation before commencing any such operations as may affect any of the works of the Corporation by this Order authorised Provided that any extra expense which the company may incur in such reconstruction maintenance repair renewal deviation widening enlarging alteration or reconstruction by reason of the existence of the said works by this Order authorised shall be paid by the Corporation:
- (7) Any question or difference between the Corporation and the company arising under this section shall be determined by an arbiter to be agreed upon between the Corporation and the company or failing agreement to be nominated by the Board of Trade on the application of either party.

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Power to
borrow.

12. In addition to any sums they were authorised to borrow under the Order of 1904 the Corporation may from time to time with the consent of the Secretary for Scotland but not otherwise and subject to such conditions as to repayment or otherwise as he may prescribe borrow on mortgage or otherwise at interest for the purposes of the gas undertaking such sums not exceeding thirty thousand pounds in all as may be required and the Secretary for Scotland shall have and may exercise in relation to such consent all the powers of section 93 of the Local Government (Scotland) Act 1889 and the Corporation may make and grant mortgages or other securities of the several rates rents and charges and other revenues to be levied and received by the Corporation under the provisions of the Order of 1904 and this Order in security of the money so borrowed and interest thereon.

Application
of sections
of Order of
1904 to
borrowing
under this
Order.

13. The following sections of the Order of 1904 shall *mutatis mutandis* be and are hereby made applicable to all moneys borrowed or raised by the Corporation under the powers of this Order in the same manner as if such moneys had been borrowed or raised under the powers of the Order of 1904 (that is to say) :—

- Section 47 (Guarantee rate);
- Section 48 (Assessment and levy of rate);
- Section 51 (Power to borrow on a cash credit);
- Section 53 (Form of mortgage) and the Third Schedule therein mentioned;
- Section 54 (Manner in which mortgages and orders on bank account to be signed and executed);
- Section 55 (Transfers of mortgages) and the Fourth Schedule therein mentioned;
- Section 56 (Transmission of mortgages in case of bankruptcy);
- Section 57 (Mortgages of rates to be personal estate);
- Section 58 (Discharge of mortgages) and the Fifth Schedule therein mentioned;
- Section 59 (Corporation not bound to regard trusts as regards mortgages);
- Section 61 (Mode of payment off of money borrowed);
- Section 62 (Sinking fund);

Section 63 (Arrears may be enforced by appointment of A.D. 1913.
judicial factor);

Section 64 (Powers and duties of judicial factor).

14. The Corporation shall pay off all moneys borrowed by them with the consent of the Secretary for Scotland under the powers of this Order within such periods as he may prescribe and such periods shall in the application of Section 62 (Sinking fund) of the Order of 1904 to money so borrowed be deemed to be the prescribed period referred to in that section. Repayment of moneys borrowed.

15. If after having borrowed the sum of thirty thousand pounds by this Order authorised or any part thereof the Corporation shall pay off the same or any part thereof otherwise than by means of instalments or of the sinking fund authorised by the Order of 1904 or by means of the proceeds of any lands being part of the gas undertaking sold by them it shall be lawful for the Corporation again to borrow the amount so paid off upon the same securities as those upon which the moneys so paid off were secured and so from time to time. Corporation may re-borrow.

16. All mortgages assignments or other securities on the rates rents charges and other revenues leviabie and receivable by the Corporation granted by the Corporation in pursuance of the powers and provisions of the Order of 1904 before and subsisting at the commencement of this Order shall during the continuance of such mortgages assignments or securities have priority over any mortgages assignments or securities on the same rates rents charges and other revenues of the Corporation granted after the commencement of this Order Provided that all securities hereafter granted by the Corporation for money borrowed or raised for the gas undertaking shall rank together pari passu without preference or priority the one over the other All mortgages granted by the Corporation after the commencement of this Order shall contain an indorsation to that effect. Priority of existing mortgages.

17. A person lending money to the Corporation shall not be bound to inquire as to the observance by them of any provision of this Order or be bound to see to the application or be answerable for any loss misapplication or non-application of such money or of any part thereof. Protection of lender from inquiry.

18.—(1) For the purpose of writing off out of the gas revenues in each year commencing with the year ending the fifteenth day of May one thousand nine hundred and fifteen as Depreciation and reserve.

A.D. 1913. — depreciation on meters and stoves respectively the Corporation shall set apart sums equal to six pounds per centum on the total amount expended on meters and ten pounds per centum on the total amount expended on stoves by the Corporation subsequent to the purchase by them of the undertaking of the Airdrie Gas Light Company and charged to capital account up to the fifteenth day of May immediately preceding such writing off.

(2) The Corporation shall also set aside out of the gas revenues in each year commencing with the year ending the fifteenth day of May one thousand nine hundred and fifteen to the reserve fund authorised to be formed by the section of this Order whereof the marginal note is "Application of revenue" a sum equal to not less than one penny for each one thousand cubic feet of gas sold in such year.

(3) The above charges upon revenue shall be taken into account in fixing the price of gas from time to time in terms of section 36 (Corporation to fix price of gas) of the Order of 1904 and shall be reckoned as annual expenditure for the purposes of section forty-seven of the Order of 1904.

Annual
return to
Secretary
for Scotland
with
respect to
sinking
fund and
other funds.

19. The treasurer to the Corporation shall within two months after the expiration of each financial year during which any sums are by the Order of 1904 and this Order required to be set apart as (1) a sinking fund (2) a depreciation fund and (3) a reserve fund transmit to the Secretary for Scotland a return in such form as may be prescribed by the Secretary for Scotland and verified by statutory declaration if so required by him showing the amount which has been so set apart in respect of that year and also showing the purposes to which any portion of such respective funds and the interest thereof have been applied during the same period and the total amount remaining to the credit of each of such funds at the end of the same period and in the event of any default in making such return the treasurer to the Corporation shall be liable to a penalty not exceeding twenty pounds recoverable by the Secretary for Scotland as a debt to the Crown is recoverable. If it appear to the Secretary for Scotland by such return or otherwise that the Corporation have failed to set apart the sums required by the Order of 1904 and this Order or have applied any portion of the moneys set apart for the said funds or any interest thereof to any purposes other than those authorised by the Order of 1904 and this Order the Secretary for

Scotland may by order direct that a sum not exceeding double the amount in respect of which such default shall have been made shall be set apart as part of the fund or funds where default has been made and such order shall be enforceable by decree of either division of the Inner House of the Court of Session pronounced in a summary application presented for that purpose. A.D. 1913.

20. All moneys borrowed by the Corporation under this Order shall be applied only to purposes sanctioned by the Secretary for Scotland to which capital is properly applicable. Application of money borrowed.

21. Section 45 (Application of revenue) of the Order of 1904 is hereby repealed. The rates rents and charges levied under the authority of the Order of 1904 and this Order and the other revenues of the Corporation arising under and in connection with the gas undertaking shall be applicable in the manner and in the order following (that is to say):— Application of revenue.

- (1) In payment of the expenses of managing and maintaining the gas undertaking including the annual costs charges and expenses of providing and supplying gas and of manufacturing converting and dealing in the residual products arising therefrom and also the payment of any feu duties casualties ground annuals and rates and taxes exigible in respect of any lands or property forming part of the gas undertaking :
- (2) In providing for the payment of the interest on and for the repayment of money borrowed under the authority of the Order of 1904 and this Order :
- (3) In providing the sums hereinbefore required to be written off as depreciation on stoves and meters :
- (4) In providing a reserve fund by setting aside such money as they from time to time think reasonable not being less than the sum prescribed by subsection (2) of the section of this Order whereof the marginal note is "Depreciation and reserve" and investing the same and the resulting income thereof upon securities upon which trustees are by law for the time being authorised to invest and accumulating the same at compound interest until the fund so formed amounts to one-tenth of the aggregate capital expenditure on

A.D. 1913.
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the gas undertaking which reserve fund shall be applicable as and when the Corporation shall determine from time to time to meet any deficiency at any time happening in the income of the Corporation from the gas undertaking or to meet the cost of any extensions and improvements or any extraordinary claim or demand at any time arising against the Corporation in respect of the gas undertaking. Provided that any sum withdrawn from the reserve fund for the purpose of meeting any deficiency as aforesaid shall be taken into account in fixing the price to be charged for gas in the year immediately following that in which the deficiency has occurred and shall be repaid to the reserve fund out of the revenues of the gas undertaking or by means of the guarantee rate which the Corporation are empowered and required to levy for the purposes of the Order of 1904 and this Order and any failure to repay to the reserve fund any sum as herein provided may be dealt with as a default under the section of this Order the marginal note of which is "Annual return to Secretary for Scotland with respect to sinking fund and other funds."

Costs of
Order.

22. All costs charges and expenses of and incident to the preparing for and obtaining and confirming this Order or in relation thereto shall be paid by the Corporation out of the money authorised to be borrowed and received under the authority of this Order and the same shall be repaid within five years from the commencement of this Order.

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